

23VECV03196 23VECV03196

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-06-25

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Case Number: 23VECV03196 Hearing Date: June 25, 2026 Dept: B

Tentative Ruling

Rose v. Loren Properties, Case no. 23VECV03196

Hearing date June 25, 2026

Plaintiff

Rose's Motion to Compel Depositions of PMKs - UNOPPOSED

Plaintiff

Rose sues defendants Loren Properties, LLC, Westside Habitats, LLC, Mehta and

Graham for premises liability. Plaintiff moves to compel the depositions of

Loren Properties and Westside Habitats' employees and PMKs, as well as for

sanctions. The motion is unopposed.

A

party may move for an order compelling the attendance and testimony of a

deponent where the deponent fails to appear for examination following the

service of a deposition notice. Code Civ. Proc. §2025.450.

Plaintiff

served deposition notices 2/11/26 to Lopes, Moseler, Hernandez, Garcia, Tucker and Mehta and the PMK of Westside Habitat. Plaintiff offers the declaration of counsel Smith, with communications between the parties as exhibit 1 and copies of the deposition notices as exhibit 2. See Decl. Smith, paras. 3-4. No exhibits are attached. While the motion is unopposed, the court cannot compel the depositions without admissible evidence that notices were served and the depositions did not occur. The matter is continued to allow for the missing exhibits to be filed.